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February 17, 2025

By: Coleman

An Act relating to chiropractors; amending 59 O.S. 2021, Sections 161.2, 161.3, 161.7, 161.8, and 161.9, which relate to the Oklahoma Chiropractic Practice Act; modifying definitions; requiring use of licensure portals; modifying certain licensing requirements; modifying requirements for notification of disapproval; updating statutory language; repealing 59 O.S. 2021, Section 161.12a, which relates to registration as chiropractic claims consultant; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 161.2, is amended to read as follows:

Section 161.2. A. Chiropractic is the science and art that teaches health in anatomic relation and disease or abnormality in anatomic disrelation, and includes hygienic, sanitary and therapeutic measures incident thereto in humans. The scope of practice of chiropractic shall include those diagnostic and treatment services and procedures which have been taught by ~~an~~ accredited a chiropractic college program accredited by the Council on Chiropractic Education and have been approved by the Board of Chiropractic Examiners.

1 B. A chiropractic physician may engage in the practice of
2 animal chiropractic diagnosis and treatment if certified to do so by
3 the Board. A licensed chiropractic physician may provide
4 chiropractic treatment to an animal without being certified in
5 animal chiropractic diagnosis and treatment by the Board if an
6 animal has been referred to the chiropractic physician by a licensed
7 veterinarian in writing.

8 SECTION 2. AMENDATORY 59 O.S. 2021, Section 161.3, is
9 amended to read as follows:

10 Section 161.3. As used in the Oklahoma Chiropractic Practice
11 Act, these words, phrases or terms, unless the context otherwise
12 indicates, shall have the following meanings:

13 1. "Accredited chiropractic ~~college~~ program" means a
14 chiropractic ~~educational institution~~ degree program which is
15 accredited by an accrediting agency recognized by the U.S.
16 Department of Education;

17 2. "Animal chiropractic diagnosis and treatment" means
18 treatment that includes vertebral subluxation complex (vsc) and
19 spinal manipulation of nonhuman vertebrates. The term "~~animal~~
20 animal chiropractic diagnosis and ~~treatment~~" treatment shall not be
21 construed to allow the:

- 22 a. use of x-rays,
- 23 b. performing of surgery,
- 24 c. dispensing or administering of medications, or

d. performance of traditional veterinary care;

3. "Applicant" means any person submitting an application for licensure to the Board;

4. "Board" means the Board of Chiropractic Examiners;

5. "Certified chiropractic assistant" means an unlicensed member of a chiropractic physician's team of healthcare workers who may assist a chiropractic physician in the performance of examination and therapeutic procedures and techniques necessary to deliver healthcare services to patients within the scope of chiropractic and has been certified by the Board;

6. "Chiropractic physician", "chiropractor", "doctor of chiropractic", "practitioner of chiropractic" and "licensee" are synonymous and mean a person holding an original license to practice chiropractic in this state;

7. "Examination" means the process used by the Board, prior to the issuance of an original license, to test the qualifications and knowledge of an applicant on any or all of the following: current statutes, rules or any of those subjects listed in Section 161.8 of this title;

8. "Intern" means a student at an accredited chiropractic college program who is participating in the Chiropractic Undergraduate Preceptorship Program;

9. "Nonclinical" means of a business nature including, but not limited to, practice management, insurance information, and computer

1 information. It shall also mean the discussion of philosophy as it
2 relates to the performance of chiropractic;

3 10. "Original license" means a license granting initial
4 authorization to practice chiropractic in this state issued by the
5 Board to an applicant found by the Board to meet the licensing
6 requirements of the Oklahoma Chiropractic Practice Act, by
7 examination pursuant to Section 161.7 of this title, or by
8 relocation of practice pursuant to Section 161.9 of this title;

9 11. "Preceptor" means a chiropractic physician who is
10 participating in the Chiropractic Undergraduate Preceptorship
11 Program;

12 12. "Relocation of practice" means the recognition and approval
13 by the Board, prior to the issuance of an original license, of the
14 chiropractic licensing process in another state, country, territory
15 or province; and

16 13. "Renewal license" means a license issued to a chiropractic
17 physician by the Board, on or before the first day of July of each
18 year, which authorizes such licensee to practice chiropractic in
19 this state during the succeeding calendar year.

20 SECTION 3. AMENDATORY 59 O.S. 2021, Section 161.7, is
21 amended to read as follows:

22 Section 161.7. A. 1. Applications for an original license by
23 examination to practice chiropractic in this state shall be made to
24

1 the Board of Chiropractic Examiners ~~in writing on a form and in a~~
2 ~~manner prescribed by the Board~~ through the online licensure portal.

3 2. The application shall be accompanied by a fee of Three
4 Hundred Dollars (\$300.00), which shall not be refundable under any
5 circumstances.

6 3. If the application is disapproved by the Board, the
7 applicant shall be so notified by the Executive Director of the
8 Board of Chiropractic Examiners, with the reason for such
9 disapproval fully stated in writing.

10 4. If the application is approved, the applicant may take an
11 examination administered by the Board for the purpose of securing an
12 original license. The Board may accept a passing score on an
13 examination administered by the National Board of Chiropractic
14 Examiners taken by the applicant or may require the applicant to
15 take an examination administered by the Board or both.

16 5. Prior to approval of an application, the Board may authorize
17 the Executive Director of the Board of Chiropractic Examiners to
18 issue a temporary license to an applicant who has submitted a
19 completed application and who, upon payment of the examination fee,
20 has passed the required examination with a score acceptable to the
21 Board. A temporary license shall authorize the applicant to
22 practice chiropractic in Oklahoma between the submission of the
23 application and the applicant's approval for licensure by the Board.
24 A temporary license shall expire upon the Board's approval of a

1 permanent license or ten (10) calendar days following the Board's
2 denial of an application for a permanent license.

3 B. Applicants for an original license to practice chiropractic
4 in this state shall submit to the Board of Chiropractic Examiners
5 documentary evidence of completion of:

6 1. ~~A course of resident study of not less than four (4) years~~
7 ~~of nine (9) months each in an accredited chiropractic college~~ A
8 valid degree of Doctor of Chiropractic from a program accredited by
9 the Council on Chiropractic Education. A senior student at an
10 accredited chiropractic ~~college~~ program may make application for an
11 original license by examination prior to graduation, but such a
12 license shall not be issued until documentary evidence of the
13 graduation of the student from the ~~college~~ program has been
14 submitted to the Board;

15 2. Parts I, II, III, IV and physiotherapy as administered by
16 the National Board of Chiropractic Examiners with a passing score;
17 and

18 3. Passing a jurisprudence examination approved by the Board
19 with a score of seventy-five percent (75%) or better.

20 C. Each applicant shall be a graduate of an accredited
21 chiropractic ~~college~~ program. For those graduating from a
22 chiropractic program outside the United States, the applicants must
23 have completed an educational program leading to a degree in
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1 chiropractic from an institution authorized to operate by the
2 government having jurisdiction in which it is domiciled.

3 D. All credentials, diplomas, and other required documentation
4 in a foreign language submitted to the Board by such applicants
5 shall be accompanied by notarized English translations.

6 E. International applicants shall provide satisfactory evidence
7 of meeting the requirements for permanent residence or temporary
8 nonimmigrant status as set forth by the United States Citizenship
9 and Immigration Services.

10 F. Effective January 1, 2006, out-of-state licensed applicants
11 shall submit to the Board documentary evidence that the applicant
12 has malpractice insurance. New applicants shall submit to the Board
13 documentary evidence that the applicant has malpractice insurance
14 within six (6) months of obtaining ~~their~~ his or her Oklahoma
15 license.

16 G. An applicant for an original license shall:

17 1. Inform the Board as to whether the person has previously
18 been licensed in Oklahoma and whether the license was revoked or
19 surrendered;

20 2. Inform the Board as to whether the applicant has ever been
21 licensed in another jurisdiction and whether any disciplinary action
22 was taken against the applicant;

23 3. Provide full disclosure to the Board of any criminal
24 proceeding taken against the applicant including, but not limited

1 to, pleading guilty or nolo contendere to, receiving a deferred
2 sentence for, or being convicted of a felony crime that
3 substantially relates to the practice of chiropractic and poses a
4 reasonable threat to public safety; and

5 4. If requested, appear before the Board for a personal
6 interview.

7 H. No later than one (1) year after receiving a license to
8 practice in Oklahoma, chiropractic physicians shall complete an
9 orientation course of training approved by the Board. The
10 orientation course hours shall count as continuing education credits
11 for the year in which they were earned. An association may provide
12 the orientation course of training.

13 I. The Board may issue an original license to those applicants
14 who have passed the required examination with a score acceptable to
15 the Board and who meet all other requirements set forth by the
16 Board. No license fee shall be charged by the Board for the balance
17 of the calendar year in which such a license is issued.

18 J. In addition to an applicant's failure to meet any other
19 requirements imposed by this section or other applicable law, the
20 Board may deny a license or impose probationary conditions if an
21 applicant has:

22 1. Pleaded guilty or nolo contendere to, received a deferred
23 sentence for, or been convicted of a felony crime that substantially
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1 relates to the practice of chiropractic and poses a reasonable
2 threat to public safety;

3 2. Been the subject of disciplinary action by the Board; or

4 3. Been the subject of disciplinary action in another
5 jurisdiction.

6 K. As used in this section:

7 1. "Substantially relates" means the nature of criminal conduct
8 for which the person was convicted has a direct bearing on the
9 fitness or ability to perform one or more of the duties or
10 responsibilities necessarily related to the occupation; and

11 2. "Poses a reasonable threat" means the nature of criminal
12 conduct for which the person was convicted involved an act or threat
13 of harm against another and has a bearing on the fitness or ability
14 to serve the public or work with others in the occupation.

15 SECTION 4. AMENDATORY 59 O.S. 2021, Section 161.8, is
16 amended to read as follows:

17 Section 161.8. If an examination is administered by the Board
18 of Chiropractic Examiners, it shall include those technical,
19 professional and practical subjects that relate to the practice of
20 chiropractic including, but not limited to, chiropractic principles,
21 anatomy, histology, physiology, symptomatology, orthopedia,
22 chemistry, spinography, diagnosis, sanitation and hygiene,
23 pathology, public health service and adjustology. The Board shall
24 also examine each applicant in the art of chiropractic adjusting, x-

1 ray, diagnostic laboratory procedures, physiological therapeutics
2 and other subjects taught by accredited chiropractic ~~colleges~~
3 programs.

4 SECTION 5. AMENDATORY 59 O.S. 2021, Section 161.9, is
5 amended to read as follows:

6 Section 161.9. A. Applications for an original license by
7 relocation of practice to practice chiropractic in this state shall
8 be made to the Board of Chiropractic Examiners ~~in writing on a form~~
9 ~~and in a manner prescribed by the Board~~ through the online licensure
10 portal. The application shall be accompanied by a fee of Three
11 Hundred Dollars (\$300.00), which shall not be refundable under any
12 circumstances. If the application is disapproved by the Board, ~~it~~
13 ~~shall be returned to the applicant~~ shall be notified by the
14 Executive Director of the Board of Chiropractic Examiners, with the
15 reason for its disapproval fully stated in writing.

16 B. The Board may, in its discretion, issue an original license
17 by relocation to practice to an applicant who is currently licensed
18 to practice chiropractic in another state, country, territory or
19 province, upon the following conditions:

- 20 1. That the applicant is of good moral character;
- 21 2. That the requirements for licensure in the state, country,
22 territory or province in which the applicant is licensed are deemed
23 by the Board to be equivalent to the requirements for obtaining an
24

1 original license by examination in force in this state at the date
2 of such license;

3 3. That the applicant has no disciplinary matters pending
4 against him or her in any state, country, territory or province;

5 4. That the license of the applicant was obtained by
6 examination in the state, country, territory or province wherein it
7 was issued, or was obtained by examination of the National Board of
8 Chiropractic Examiners;

9 5. That the applicant passes a jurisprudence examination given
10 by the Board or the National Board of Chiropractic Examiners with a
11 minimum score of seventy-five percent (75%) or better; and

12 6. That the applicant meets all other requirements of the
13 Oklahoma Chiropractic Practice Act.

14 C. Any applicant requesting a license by relocation of practice
15 into Oklahoma shall:

16 1. Submit to the Board documentary evidence that the applicant
17 has been in active practice as a chiropractic physician three (3)
18 years immediately preceding the date of the application;

19 2. Provide full disclosure to the Board of any disciplinary
20 action taken against the applicant pursuant to licensure as a
21 chiropractic physician in any state pursuant to licensure and/or
22 criminal proceedings;

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1 3. Provide full disclosure to the Board of any criminal
2 proceeding taken against the applicant in any jurisdiction
3 including, but not limited to:

- 4 a. pleading guilty, pleading nolo contendere, receiving a
5 deferred sentence or being convicted of a felony,
- 6 b. pleading guilty, pleading nolo contendere, receiving a
7 deferred sentence or being convicted of a misdemeanor
8 involving moral turpitude, or
- 9 c. pleading guilty, pleading nolo contendere, receiving a
10 deferred sentence or being convicted of a violation of
11 federal or state controlled dangerous substance laws;

12 4. If requested, appear before the Board for a personal
13 interview; and

14 5. Pay an application fee to be set by rule of the Board.

15 D. The Board may authorize the Executive Director of the Board
16 of Chiropractic Examiners to issue a temporary license to an
17 applicant who has submitted a completed application and has passed
18 the required examination with a score acceptable to the Board. A
19 temporary license shall authorize the applicant to practice
20 chiropractic in Oklahoma between the submission of the application
21 and the applicant's approval for licensure by the Board. A
22 temporary license shall expire upon the Board's approval of a
23 permanent license or ten (10) calendar days following the Board's
24 denial of an application for a permanent license.

1 E. No license fee shall be charged by the Board for the balance
2 of the calendar year in which such a license is issued.

3 F. In addition to an applicant's failure to meet any other
4 requirements imposed by this section or other applicable law, the
5 Board may deny a license or impose probationary conditions if an
6 applicant has:

7 1. Pledaded guilty, pleaded nolo contendere, received a deferred
8 sentence or been convicted of a felony;

9 2. Pledaded guilty, pleaded nolo contendere, received a deferred
10 sentence or been convicted of a misdemeanor involving moral
11 turpitude;

12 3. Pledaded guilty, pleaded nolo contendere, received a deferred
13 sentence or been convicted of a violation of federal or state
14 controlled dangerous substance laws;

15 4. Been the subject of disciplinary action by the Board; or

16 5. Been the subject of disciplinary action in another
17 jurisdiction.

18 SECTION 6. REPEALER 59 O.S. 2021, Section 161.12a, is
19 hereby repealed.

20 SECTION 7. This act shall become effective November 1, 2025.

21 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
22 February 17, 2025 - DO PASS
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